

23SMCV06029 23SMCV06029

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CASE NAME: Yacoub, et al., v. Tuft, et al.

CASE NO.: 23SMCV06029

MOTION: Motion to Compel Arbitration

HEARING DATE: 7/28/2026

LEGAL STANDARD

Under California and federal law, public policy favors arbitration as an efficient and less expensive means of resolving private disputes. (Moncharsh v. Heily & Blase (1992) 3 Cal.4th 1, 8-9; AT&T Mobility LLC v. Concepcion (2011) 563 U.S. 333, 339.) Accordingly, whether an agreement is governed by the California Arbitration Act ("CAA") or the Federal Arbitration Act ("FAA"), courts resolve doubts about an arbitration agreement's scope in favor of arbitration. (Moncharsh, supra, 3 Cal.4th at 9; Comedy Club, Inc. v. Improv West Assocs. (9th Cir. 2009) 553 F.3d 1277, 1284; see also Engalla v. Permanente Med. Grp., Inc. (1997) 15 Cal.4th 951, 971-972 ["California law incorporates many of the basic policy objectives contained in the Federal Arbitration Act, including a presumption in favor of arbitrability [citation] and a requirement that an arbitration agreement must be enforced on the basis of state law standards that apply to contracts in general"].) "[U]nder both the FAA and California law, 'arbitration agreements are valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract.' " (Higgins v. Superior Crout (2006) 140 Cal.App.4th 1238, 1247.)

"Code of Civil Procedure section 1281.2 requires a trial court to grant a petition to compel arbitration if the court determines that an agreement to arbitrate the controversy exists." (Avery v. Integrated Healthcare Holdings, Inc. (2013) 218 Cal.App.4th 50, 59, quotations omitted.) Accordingly, "when presented with a petition to compel arbitration, the court's first task is to determine whether the parties have in fact agreed to arbitrate the dispute." (Ibid.) A petition to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (Id. at 71.) As with any other specific performance claim, "a party seeking to enforce an arbitration agreement must show the agreement's terms are sufficiently definite to enable the court to know what it is to enforce." (Ibid. [internal citations omitted].) "Only the valid and binding agreement of the parties, including all material terms well-defined and clearly expressed, may be ordered specifically performed." (Ibid.) An arbitration agreement "must be so interpreted as to give effect to the mutual intention of the parties as it existed at the time of contracting, so far as the same is ascertainable and lawful." (Civ. Code, § 1636.) The language of the contract governs its interpretation if it is clear and explicit. (Civ. Code, § 1368.) If uncertainty exists, "the language of a contract should be interpreted most strongly against the party who caused the uncertainty to exist." (Civ. Code, § 1654.)

As with any contract, mutual assent or consent is necessary for the formation of a valid arbitration agreement. (Civ. Code, §§ 1550, 1565.) "Consent is not mutual, unless the parties all agree upon the same thing in the same sense." (Civ. Code, § 1580.) The moving party bears the initial burden of showing the existence of an agreement to arbitrate by a preponderance of the evidence. (Mitri v. Arnel Mgmt. Co. (2007) 157 Cal.App.4th 1164, 1169.) It would then be plaintiff's burden, in opposing the motion, to prove by a preponderance of the evidence any fact necessary to her opposition. (Engalla v. Permanente Medical Group, Inc. (1997) 15 Cal.4th 951, 972.) "In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination." (Ibid.)

ANALYSIS

Defendants Paul Tuft, Precious Mayes,
Gupreet Singh, M.D., Pacific Garden Medical, Center, LLC and Tuft Healthcare

Investments, LLC move to compel Plaintiffs Ehab Yacoub and Lorine Mikheail's seek to compel this matter to binding arbitration before JAMS under the Term Sheet signed by the parties on August 14, 2025.

Defendants explain that after more than a year of negotiations, the parties executed a Term Sheet. (Tuft Decl., Ex. A.) The Term Sheet is purportedly a non-binding settlement agreement for this action. The relevant terms of the settlement agreement are redacted and not presented to the court. The Term Sheet's settlement terms were apparently not consummated by the parties through the contemplated "Definitive Agreement." (Id., p. 4.) The Term Sheet contains the following arbitration provision:

All disputes under this Term Sheet shall be resolved by binding arbitration administered by JAMS. The place of arbitration shall be Los Angeles County. Judgment upon the award may be entered by any court having jurisdiction thereof. The parties hereby consent to the non-exclusive jurisdiction and venue of the federal and state courts sitting in the Los Angeles County, in the State of California.

(Id., p. 3, emphasis added.) The Term Sheet states that the arbitration provision is binding, despite any of the other non-binding terms. (Id., pp. 3-4.) However, the Term Sheet does not show the parties intended to bring the First Amended Complaint ("FAC") to arbitration. The Term Sheet is not the subject of the causes of action in the FAC. The FAC arises out of separate agreement(s) concerning the sale of membership interests in a group of hospitals. (FAC ¶¶ 2-5, 25-49, Exs. A-B.) The FAC presents no dispute concerning the Term Sheet. Thus, while any dispute regarding the Term Sheet would be required to be arbitrated, the Term Sheet would not require the instant action to be arbitrated.

Accordingly, the motion is DENIED.